



SPONSOR: Rep. Chukwuocha & Sen. Poore
Reps. Cooke, Yearick, Collins, Hilovsky, Ortega; Sens.
Hoffner, Wilson, Buckson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 121

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO CHILD CARE LICENSING.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 30A, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and redesignating accordingly:

§ 3002A. Definitions.

For the purpose of this chapter:

(1) c. “Child care” does not include any of the following:

1. Individual ~~individual~~ foster or adoptive homes in which children have been placed by a State-licensed child placing agency.

2. Military family child care providers.

(5) “Military family child care provider” means a family child care home or large family child care home that serves only dependent children eligible for Department of Defense subsidized care and is one or both of the following:

a. Located on a military base or federal property.

b. Certified as a family child care provider by a branch of the U.S. Department of Defense or the U.S. Coast Guard.

§ 3004A. Child care licenses; investigation; requirements; notice; hearings and appeals.

(d) (1) This section applies to an entity under state ownership and control that operates an early education program. Only the early education program must be licensed and meet OCCL requirements.

(2) This section does not apply to any of the following:

a. ~~a~~ A maternity ward of a general hospital.

b. A military family child care provider.

(3) The U.S. Department of Defense or the U.S. Coast Guard, or their agents, including an installation commander of a military base on which a military family child care provider is located, must assume responsibility for approving or determining which children are served by the military family child care providers that are exempt from this section.

Section 2. This Act takes effect 60 days after its enactment into law.

SYNOPSIS

This Act exempts from state child care licensing requirements a military family child care provider that serves only children eligible for Department of Defense subsidized care that is either located on a military base or federal property, certified as a family child care provider by a branch of the U.S. Department of Defense or the U.S. Coast Guard, or both.